

Court of Appeals' contrary judgment is improvident. Section 1983 does not extend the right to relitigate in federal court evidentiary questions arising in school disciplinary proceedings or the proper construction of school regulations and was not intended to be a vehicle for federal-court correction of errors in the exercise of school officials' discretion that do not rise to the level of violations of specific constitutional guarantees. Pp. 322-326.

3. Since the District Court did not discuss whether there was a procedural due process violation, and the Court of Appeals did not decide the issue, the Court of Appeals, rather than this Court, should consider that question in the first instance. Pp. 326-327.  
485 F. 2d 186, vacated and remanded.

WHITE, J., delivered the opinion of the Court, in Parts I, III, and IV of which all other Members joined, and in Part II of which DOUGLAS, BRENNAN, STEWART, and MARSHALL, JJ., joined. POWELL, J., filed an opinion concurring in part and dissenting in part, in which BURGER, C. J., and BLACKMUN and REHNQUIST, JJ., joined, *post*, p. 327.

*G. Ross Smith* argued the cause for petitioners. With him on the brief was *Herschel H. Friday*.

*Ben Core* argued the cause and filed a brief for respondents.\*

MR. JUSTICE WHITE delivered the opinion of the Court.

Respondents Peggy Strickland and Virginia Crain brought this lawsuit against petitioners, who were members of the school board at the time in question, two school administrators, and the Special School District of Mena, Ark.,<sup>1</sup> purporting to assert a cause of action

---

\**F. Raymond Marks* filed a brief for the Childhood and Government Project as *amicus curiae*.

<sup>1</sup>The Court of Appeals affirmed the directed verdicts awarded by the District Court to P. T. Waller, the principal of Mena Public High School at the time in question, S. L. Inlow, then superintendent of schools, and the Mena Special School District. 485 F. 2d 186, 191 (CA8 1973). Since respondents have not cross-petitioned, the cases of these three parties are not before the Court.